THE NATIONAL COMPANY LAW TRIBUNAL, COURT-V, NEW DELHI
Company Application No. CA (CAA) -90/230/232/ND/2020

U/S 230-232 and other applicable provisions of the Companies Act, 2013

Item 512 of 09.09.21

In the Matter of:
Digilife Distribution and Marketing Services Limited
806, Siddharth 96, Nehru Place, New Delhi-110019

.... Transferor Company- 1

And

HCL Learning Limited
806, Siddharth 96, Nehru Place, New Delhi-110019

.... Transferor Company- 2

With

HCL Infosystems Limited
806, Siddharth 96, Nehru Place, New Delhi-110019

.... Transferee Company

Order Delivered on **24.09.2021**

Coram:
Hon'ble P.S.N Prasad, Member (J)
Hon'ble K.K. Vohra, Member (T)

Present:
For the Petitioners: Advs Mahesh Agarwal, Rishi Agarwal, Rajeev Kumar

Rectification of Order dated 17.9.21

In exercise of the powers conferred under Rule 154 of NCLT Rules, 2016, the Order dated 17.09.21 is rectified as follows:

1. In Line 5 of Para 14 A (i) and (iii) line 5 "and 75% in value as provided in Section 230 (6) of the Act" is **deleted**.

2. In Line 5 of Para 14 B (i) and of Para 14 (C) (i), (iii) line 5 "and 75% in value as provided in Section 230 (6) of the Act" is **deleted**.

3. The Para 14 H, is **replaced with** following para "Individual notices for meetings of Unsecured Creditors and Shareholders shall be sent by the Petitioner Cos through

Speed post or Email, together with any other documents applicable as per provisions of law/relevant Rules/Circulars"

4. Para F line 5, the following may be added "For the purpose of computing the quorum, the valid proxy shall also be considered as per applicable Rules/Regulations/Circulars of MCA."

The Order dated 17.09.21 is rectified to the extent as stated above.

Sd/-

(K. K. VOHRA)
MEMBER (T)

Sd/-

(P.S.N PRASAD)
MEMBER (J)

The above Order will be Pronounced by Hon'ble Member Technical on behalf of Hon'ble Member Judicial in terms of Rule 151 of NCLT Rules, 2016

23/9/2021

Court Master
(Court -V)

Sd/-

K.K. VOHRA
(Member -T)

Sd/-

P.S.N Prasad
(Member -J)